

ORDINANCE NO. A 20

TOWN OF DECATUR, MISSISSIPPI

AN ORDINANCE OF THE TOWN OF DECATUR, MISSISSIPPI REGULATING THE USE OF PUBLIC AND PRIVATE SEWERS AND DRAINS, PRIVATE SEWAGE DISPOSAL, THE INSTALLATION AND CONNECTION OF BUILDING SEWERS, AND THE DISCHARGE OF WATERS AND WASTES INTO THE PUBLIC SEWER SYSTEM; PROVIDING PENALTIES FOR VIOLATIONS THEREOF; AND MATTERS RELATED THERETO,

BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, NEWTON COUNTY, MISSISSIPPI:

SECTION 1. DEFINITION; unless otherwise specifically indicated, the terms, words and phrases used in this ordinance, shall have the following meaning:

- (a) **“Superintendent”** shall mean the Superintendent of the Sewage Works of the Town of Decatur, Mississippi, who is also the Water Superintendent, or his authorized deputy, agent, or representative.
- (b) **“Sewage”** shall mean a combination of the water-carried wastes from residences, business buildings, institutions, and industrial establishments together with such ground, surface and storm waters as may be present.
- (c) **“Public Sewer”** shall mean a sewer in which all owners of abutting properties have equal rights, and is controlled by public authority.
- (d) **“Industrial Wastes”** shall mean the liquid wastes from industrial processes as distinct from sanitary sewage.
- (e) **“Building Drain”** shall mean that part of the lowest horizontal piping of a drainage system which receives the discharge from soil, waste, and other drainage pipes inside the walls of the building and conveys it to the building sewer, beginning 5 feet outside the inner face of the building wall.
- (f) **“B.O.D.”** (denoting Biochemical Oxygen Demand) shall mean the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure in 5 days at 20° c., expressed in parts per million by weight.
- (g) **“pH”** shall mean the logarithm of the reciprocal of the weight of hydrogen ions in grams per liter of solution.
- (h) **“Suspended Solids”** shall mean solids that either float on the surface of, or are in suspension in water, sewage, or other liquids; and which are removable by laboratory filtering.
- (i) **“Natural Outlet”** shall mean any outlet into a water course, pond, ditch, lake or other body of surface or ground water.

- (j) **"Person"** shall mean any individual, firm, company, association, society, corporation, or group.
- (k) **"Shall"** is mandatory; "May" is permissive.

SECTION 2. USE OF PUBLIC SEWERS REQUIRED.

- (a) It shall be unlawful for any person to place, deposit, or permit to be deposited in an unsanitary manner upon public or private property within the Town of Decatur, Mississippi, or in any area under the jurisdiction of said Town, any human or animal excrement, garbage, or other objectionable waste.
- (b) It shall be unlawful to discharge to any natural outlet within the Town of Decatur, or in any area under the jurisdiction of said Town, any sanitary sewage, industrial wastes, or other polluted waters, except where suitable treatment has been provided in accordance with subsequent provisions of this ordinance.
- (c) Except as hereinafter provided it shall be unlawful to construct or maintain any privy, privy vault, septic tank, cesspool, or other facility intended or used for the disposal of sewage.
- (d) The owner of all houses, buildings or properties used for human occupancy, employment., recreation, or other purpose, situated within the Town of Decatur, Mississippi and abutting on any street., alley or right of way in which there is now located or may in the future be located a public sanitary or combined sewer of said Town, is hereby required at his expense to install suitable toilet facilities therein, and to connect such facilities directly with the proper public sewer in accordance with the provisions of this ordinance, within one (1) year from the time such public sewer is made available to him, provided that said public sewer is within 200 feet of his property line; provided, however, that the provisions of this subsection shall not be enforced as to commercial establishments where the employees of such establishments, and other persons using such establishments, have access to other suitable sanitary sewage facilities.

SECTION 3. PRIVATE SEWAGE DISPOSAL

- (a) Where a public sanitary sewer not available, when required under the provisions of Section 2, subsection (d), the building sewer shall be connected to a private sewage disposal system. The Owner shall first obtain a written permit for the installation of such private sewer from the Superintendent, signed by the Superintendent, on forms furnished by the Town of Decatur, which the applicant may supplement by any plans, specifications or other information he has available. No permit or inspection fee shall be charged therefor by either the Superintendent or the Town.
- (b) A permit for private sewage disposal shall not become final until the installation is completed to the satisfaction of the Superintendent. He shall be allowed to inspect the work at any stage of construction and, in any event, the applicant for the permit shall notify the Superintendent when the work is ready for final inspection, and before any

underground portions are covered. The inspection shall be made within twenty-four hours of the receipt of notice by the Superintendent.

- (c) At such time as a public sewer becomes available to a property served by a private sewage disposal system, when required under the provisions of Section 23 Subsection (d), of this ordinance, a direct connection shall be made to the public sewer in compliance with this ordinance, and any septic tanks, cesspools and similar private sewage disposal facilities shall be abandoned and filled with suitable material.
- (d) The Owner shall operate and maintain the private sewage disposal facilities in a sanitary manner at all times¹ at no expense to the Town.
- (e) No statement contained in this Section shall be construed to interfere with any additional requirements that may be imposed by the Health Officer.

SECTION 4. BUILDING SEWERS AND CONNECTIONS

- (a) No unauthorized person shall uncover, make any connections with or opening into, use, alter or disturb any public sewer or appurtenance thereof without first obtaining a written permit from the Superintendent.
- (b) There shall be two classes of building sewer permits: (1) for residential and commercial service, and (2) for service to establishments producing industrial wastes. In either case the owner or his agent shall make application for a permit on a form to be furnished by the Town. The permit application may be supplemented by any plans, specifications, or other available information. No fee shall be charged by either the Town or the Superintendent for said permit.
- (c) All costs and expense incident to the installation and connection of the building sewer shall be borne by the owner and not by the Town. The owner shall indemnify the Town from any loss or damage that may directly or indirectly be occasioned by the installation of the building sewer.
- (d) A separate and independent building sewer shall be provided for every building required to be connected to the public sewer system; except where one building stands at the rear of another on an interior lot and no private sewer is available or can be constructed to the rear building through an adjoining alley, court yards or driveway, the building sewer from the front building may be extended to the rear building and the whole considered as one building sewer.
- (e) Old building sewers may be used in connection with new buildings only when they are found, on examination and test by the Superintendent to meet all requirements of this ordinance.
- (f) The building sewer shall be either cast iron soil pipe, ASTM Specification (A74) or equal; vitrified clay sewer pipe, ASTM Specification (CI3) or equal; or concrete pipe, ASTM Specification (CI4) or equal; all joints shall be tight and waterproof. Building sewers shall not be placed in the same trench with water service lines. If installed in filled or unstable ground, the building sewer shall be properly bedded as approved by the Superintendent.

- (g) The size and slope of the building sewer shall be subject to the approval of the Superintendent, but in no event shall the diameter be less than four (4) inches. The slope of such 4-inch pipe shall not be less than one-eighth (1/8) inch per foot.
- (h) Whenever possible the building sewer shall be brought to the building at an elevation below the basement floor. No building sewer shall be laid parallel to or within three (3) feet of any bearing wall which might be weakened thereby. The building sewer shall be laid at uniform grade and in straight alignment in so far as possible. Changes in direction shall be made only with properly curved pipe and fittings.
- (i) All excavations required for the installation of a building sewer shall be open trench work unless otherwise approved by the Superintendent. Pipe laying and backfill shall be performed in accordance with ASTM specification (C12) except that no backfill shall be placed until the work has been inspected by the Superintendent.
- (j) All joints and connections shall be made gastight and watertight.
- (k) All joints of pipes shall be either (1) factory made joints of materials having resilient properties as specified by the proper ASTM manual, (2) approved hot pour joints, (3) bituminous joints or (4) other acceptable joints approved by the Superintendent.

The hot pour joints, when used in jointing clay sewer pipes shall have a bond strength of not less than 100 psi when poured against a dry clay surface. These compounds shall be non-porous, non-absorbent, and not subject to bacterial or chemical action.

The finished joint shall not soften so as to destroy its effectiveness when subjected to temperatures of 160 °F and shall be chemically inert to wastes carried by the drainage system. Joints shall not be tested until one hour after pouring.

Sulfur compounds are subject to bacterial attack and shall not be used. Cement mortar joints can be corroded by sewage and soil acids and are not recommended for use.

All jointing materials and methods to be used shall be approved by the Superintendent.

- (l) The connection of the building sewer into the public sewer shall be made at the first branch if such branch is available at a suitable location. If the public sewer is twelve (12) inches in diameter or less, and no properly located "Y" branch is available, the owner shall at his expense install a "Y" branch in the public sewer at the location specified by the Superintendent. Where the public sewer is greater than twelve inches in diameter, and no "Y" branch is available, a neat hole may be cut into the street sewer to receive the building sewer, with entry in the downstream direction at proper angles. A correct fitting shall be made where the building sewer is jointed to the public sewer, and all such connections shall be approved by the Superintendent. The invert of the building sewer at the point of connection shall be at the same or at a higher elevation than the invert of the public sewer. A smooth, neat joint shall be made, and the connection made secure and watertight by encasement in concrete. Special fittings may be used for the connection only when approved by the Superintendent.

- (m) The applicant for the building sewer permit shall notify the Superintendent when the building sewer is ready for inspection and connection to the Public sewer. The connection shall be made under the supervision of the Superintendent or his representative.
- (n) All excavations for building sewer installation shall be adequately guarded with barricades and lights so as to protect the public from hazard. Streets, sidewalks and other public property disturbed in the course of work on building sewers shall be restored in a manner satisfactory to the Town.

SECTION 5. USE OF THE PUBLIC SEWER

- (a) No person shall discharge or cause to be discharged any storm water, surface water, roof runoff, subsurface drainage, cooling water or unpolluted industrial process waters to any sanitary sewer.
- (b) Storm water and all other unpolluted drainage shall not be discharged to sanitary sewers. Industrial cooling water or unpolluted process waters may be discharged, upon approval of the Superintendent, to the storm sewer, if available, or natural outlet.
- (c) Except as hereinafter provided, no person shall discharge or cause to be discharged any of the following described waters or wastes to any public sewer:
 - 1. Any liquid or vapor having a temperature higher than 150 ° F.
 - 2. Any water or waste which may contain more than 100 parts per million, by weight, of fat, oil or grease.
 - 3. Any gasoline, benzene, naphtha, fuel oil, or ether flammable or explosive liquid solid or gas.
 - 4. Any garbage that has not been properly shredded.
 - 5. Any ashes, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastics, wood, paunch manure, or any other solid or viscous substance capable of causing obstruction to the flow in sewers or other interference with the proper operation of the sewage works.
 - 6. Any waters or wastes having a pH lower than 5. 5 or higher than 9. 0, or having any other corrosive property capable of causing damage or hazard to structures, equipment; and personnel of the sewage works.
 - 7. Any waters or wastes containing a toxic or poisonous substance in sufficient quantity to injure or interfere With any sewage treatment process, con-stitute a hazard to humans or animals, or create any hazard in the receiving of waters of the sewage treatment plant.
 - 8. Any waters or wastes containing suspended solids of such character and quantity that unusual attention or expense is required to handle such materials at the sewage treatment lagoons.
 - 9. Any noxious or malodorous gas or substance capable of creating a public nuisance.

- (d) Grease, oil, and sand interceptors shall be provided when, in the opinion of the Superintendent, they are necessary for the proper handling of liquid wastes containing grease in excessive amounts, or any flammable wastes, sand, and other harmful ingredients; except that such interceptors shall not be required of private living quarters or dwelling units. All interceptors shall be of a type and capacity approved by the Superintendent, and shall be located as to be readily and easily accessible for cleaning and inspection. Grease and oil interceptors shall be constructed of impervious materials capable of withstanding abrupt and extreme changes in temperature. They shall be of substantial construction, watertight, and equipped with easily removable covers which when bolted in place shall be gastight and watertight. Where installed, all grease, oil and sand interceptors shall be maintained by the owner, at his expense, in continuously efficient operation at all times.
- (e) The admission into the public sewers of any waters or wastes having (1) a 5-day Biochemical Oxygen Demand greater than 300 parts per million by weight¹ or (2) containing more than 350 parts per million by weight of suspended solids, or (3) containing any quantity of substances having the characteristics described in Subsection (c), or (4) having an average daily flow greater than 2% of the average daily sewer flow of the Town of Decatur, shall be subject to the review and approval of the Superintendent. Where necessary in the opinion of the Superintendent, the owner shall provide, at his own expense, such preliminary treatment as may be necessary to, (1) reduce the Biochemical Oxygen Demand to the amount herein authorized¹ and to reduce the suspended solids to the amount herein authorized, or (2) reduce objectionable characteristics or constituents to within the minimum limits provided for in this ordinance, or (3) control the quantities and rates of discharge of such waters or wastes.
- (f) When required by the Superintendent, the Owner of any property served by building sewer carrying industrial wastes shall install a suitable control manhole in the building sewer to facilitate observation³ sampling and measurement of the wastes, and such manhole, when required, shall be accessible and safely located, and shall be constructed in accordance with plans approved by the Superintendent. The manhole shall be installed by the owner at his expense and shall be maintained by him so as to be safe and accessible at all times.
- (g) All measurements¹ tests and analyses of the characteristics of waters and wastes to which reference is made in Sections 5 hereof, and elsewhere in this Ordinance shall be determined in accordance with "Standard Methods for the Examination of Water and Sewage" and shall be determined at the control manhole provided for that purpose, or upon suitable samples taken.

No statement contained in this Section shall be construed as preventing any special agreement or arrangement between the Town and any industrial concern whereby an industrial waste of unusual strength or character may be accepted by the Town for treatment¹ subject to payment therefor by the industrial concern.

SECTION 6. PROTECTION FROM DAMAGE

No unauthorized person shall maliciously, willfully, or negligently break, damage, or destroy, or uncover, deface or tamper with any structure, appurtenance, or equipment which is a part of the Town Sewage Works. Any person violating this provision shall be subject to immediate arrest under charge of disorderly conduct or other appropriate charge.

SECTION 7. PENALTIES

- (a) Any person found to be violating any provision of this ordinance, except Section 6 hereof, shall be served by the Town with written notice stating the nature of the violation and providing a reasonable time limit for the satisfactory correction thereof. The offender shall, within the period of time stated in said notice, permanently cease all violations.
- (b) Any person who shall continue any violation beyond the time limit provided for in Subsection (a) hereof shall be guilty of a misdemeanor, and upon conviction thereof shall be fined in an amount not exceeding One hundred dollars (\$100.00) for each violation. Each day in which any such violation shall continue shall be deemed a separate offense.

SECTION 8. VALIDITY

- (a) All ordinances, orders, and/or resolutions in conflict herewith are hereby repealed, provided, however, that this ordinance shall be considered as supplementary to the resolutions heretofore adopted setting rates for the use of the Combined Water and Sewer System of the Town of Decatur, Mississippi.
- (b) The invalidity of any section, clause, sentence or provision of this ordinance shall not affect the validity of any other part of this ordinance which can be given effect without such invalid part or parts.

SECTION 9. EFFECTIVE DATE OF ORDINANCE

- (a) This ordinance is adopted by the Mayor and Board of Aldermen of the Town of Decatur, Mississippi, for the immediate and temporary preservation of the public peace, health and safety of the residents and citizens of the Town of Decatur, Mississippi, and shall be effective from and after its passage.
- (b) The Town Clerk of the Town of Decatur, Mississippi, is hereby authorized and directed to give notice to the public of the adoption of this ordinance by posting not less than three certified copies of said ordinance in public places within the corporate limits of the Town of Decatur; one copy of said ordinance to be posted at each public place; It being hereby specifically found and determined that no newspaper is published in the said Town of Decatur, Mississippi.

- (c) The said Town Clerk of said Town of Decatur is further directed to record this ordinance in the Ordinance Book of the Town of Decatur, and on the minutes of this Board.

Adopted by the unanimous vote of all Aldermen of the Town of Decatur, Mississippi, and approved by the Mayor of said Town, this the 3rd day of May, 1961.